

25STCV18201 25STCV18201

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 25STCV18201 Hearing Date: August 11, 2026 Dept: 408

Plaintiff Claudia

M. Oliva's Motion to Compel Initial Disclosures and Request for Sanctions as to Defendant FCA US, LLC is DENIED.

I.

BACKGROUND

On June 23, 2025, Plaintiff Claudia M. Oliva ("Plaintiff") filed a complaint against Defendants FCA US, LLC ("FCA") and Monrovia Chrysler Dodge Jeep Ram ("Monrovia", collectively "Defendants") alleging causes of action for:

1. Violation of Subdivision (d) of Civil Code

Section 1793.2;

2. Violation of Subdivision (b) of Civil Code

Section 1793.2;

3. Violation of Subdivision (a)(3) of Civil Code

Section 1793.2;

4. Breach of the Implied Warranty of

Merchantability;

5. Negligent Repair; and

6. Fraudulent Inducement Concealment.

September 29, 2025, Monrovia filed an answer

to Plaintiff's complaint.

On January 29, 2026, the court sustained in part Defendants' Demurrer to Plaintiff's complaint without leave to amend as to the fifth cause of action, overruled in part as to the sixth cause of action, and denied Defendants' Motion to Strike portions of Plaintiff's complaint.

On March 9, 2026, Defendants filed individual answers to Plaintiff's complaint.

On May 15, 2026, Defendants filed a Notice of Withdrawal of Monrovia's answer to Plaintiff's complaint.

On May 21, 2026, the court dismissed Monrovia with prejudice.

On May 29, 2026, Plaintiff filed this Motion to Compel Initial Disclosures and Request for Sanctions as to FCA.[1] On July 22, 2026, FCA filed an opposition. As of August 22, 2026, no reply has been filed.

II.

LEGAL

STANDARD

In civil actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, the "parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

"The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

(1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year.

(2) Any warranties

issued in conjunction with the sale of the motor vehicle.

(3) Sample brochures

published for the motor vehicle.

(4) The motor

vehicle's original invoice, if any, to the selling dealer.

(5) Sales or lease

agreement, if the manufacturer is in possession.

(6) Motor vehicle

information reports, including build documentation, component information, and delivery details.

(7) Entire warranty

transaction history for the motor vehicle.

(8) Listing of

required field actions applicable to the motor vehicle.

(9) Published

technical service bulletins for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published

information service bulletins for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records

relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty

policies and procedure manuals.

(13) Service manuals

reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit

restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit

restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit

restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty

extensions or modifications issued by the manufacturer on the motor vehicle."

(Code Civ. Proc., § 871.26,
subd. (h).)

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: "A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (Code Civ. Proc., § 871.26(j)(1).)

III.

DISCUSSION

Plaintiff seeks to compel initial disclosures

from FCA pursuant Code of Civil Procedure section 871.26(h), arguing that FCA filed its Demurrer on November 5, 2025, and the 60-day deadline for initial disclosures expired on January 4, 2026. (Motion, at pp. 5-6.) Plaintiff argues that FCA failed to propound complete initial disclosures or provide verified responses, and therefore FCA has failed to comply with its statutory obligations under Section 871.26. (Ibid.) Specifically, Plaintiff argues

that FCA did not provide all documents required under Section 871.26, subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13). (Id., at p. 2.)

In opposition, FCA provides that initial disclosures were served in compliance with Section 871.26(h). (Opp., at p. 3.) FCA argues verified written responses are not required under Section 871.26. (Opp., at pp. 2-3.) FCA further argues that Section 871.26 requires limited initial disclosures, and Plaintiff's requests go beyond the scope of the statute. (Id., at pp. 3-5.) Accordingly, FCA contends that it has produced the required documents, rendering Plaintiff's motion moot. (Id., at pp. 2-3.)

The court finds that there is no indication that FCA did not comply with its statutory obligation to propound initial disclosures. The information Plaintiff seeks goes beyond the scope of Section 871.26(h) and may be requested through formal discovery procedures, rather than through a motion to compel initial disclosures. There is also no requirement under Section 871.26 that a manufacturer serve verified written responses in conjunction with its initial disclosures. Accordingly, the motion and request for sanctions are denied.

IV.

CONCLUSION

Plaintiff Claudia M. Oliva's Motion to Compel Initial Disclosures and Request for Sanctions as to Defendant FCA US, LLC is DENIED.

[1] The court notes that Plaintiff filed a second Motion to Compel Initial Disclosures and Request for Sanctions on June 2, 2026, making the same arguments as the present motion. The court similarly denies such motion based on the reasons stated.